

26STCV12028 26STCV12028

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-07-20

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Case Number: 26STCV12028 Hearing Date: July 20, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT

729

TENTATIVE RULING

LARUE

LYDELL ZAMORANO,

vs.

LISTER

LEONARD.

Case No.:

26STCV12028

Hearing Date: July 20, 2026

Pro

per Plaintiff LaRue Lydell Zamorano's unopposed motion for a preliminary injunction is denied.

Plaintiff LaRue Lydell Zamorano ("Zamorano")

("Plaintiff"), in pro per, moves unopposed for a preliminary

injunction enjoining Defendant Lister Leonard ("Leonard") ("Defendant") from accessing, transferring, assigning, or attempting to collect any funds; and interfering with any proceeds due to Plaintiff, specifically any funds relating to the \$665,000.00 tax refund identified by the Tax Title Services. (Notice of Motion, pg. 1; C.C.P. §§525, 526, 527.)

Plaintiff moves on the grounds that (1) Plaintiff is likely to prevail on the merits; (2) Plaintiff will suffer irreparable harm absent injunctive relief; (3) the balance of equities strongly favors Plaintiff; and (4) the injunction is necessary to preserve the status quo and enforce prior court orders. (Notice of Motion, pg. 1.)

Background

Plaintiff filed her operative Complaint against Defendant on April 15, 2026, which the Court notes does not allege any substantive facts and repeats legal conclusions throughout the document. (See Complaint.)

Plaintiff filed the instant motion on April 28, 2026. As of the date of this hearing no opposition has been filed.

Plaintiff's proof of service of summons indicates that both the complaint, summons, and instant motion were personally served on Defendant on April 29, 2026. (See 4/30/26 POS Leonard.)

Legal Standard

The purpose of a preliminary injunction is to preserve the status quo pending final judgment in the case. (See *Scaringe v. J.C.C. Enterprises, Inc.* (1988) 205 Cal.App.3d 1536.) The status quo has been defined to mean the last actual peaceable, uncontested status which preceded the pending controversy. (*Voorhies v. Greene* (1983) 139 Cal.App.3d 989, 995, quoting *United Railroads v. Superior Court* (1916) 172 Cal. 80, 87.)

In determining whether to issue a preliminary injunction, the trial court considers two factors: (1) the reasonable

probability that the plaintiff will prevail on the merits at trial; and (2) a balancing of the “irreparable harm” that the plaintiff is likely to sustain if the injunction is denied compared to the harm that the defendant is likely to suffer if the court grants a preliminary injunction. (C.C.P. §526(a); 14859 Moorpark Homeowner’s Association v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1402; Pillsbury, Madison & Sutro v. Schectman (1997) 55 Cal.App.4th 1279, 1283.)

The Court’s determination is guided by a “mix” of the potential-merit and interim-harm factors; the greater the plaintiff’s showing on one, the less must be shown on the other to support an injunction. (Butt v. State of California (1992) 4 Cal.4th 668, 678.) However, a trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim. (Id.)

The court must consider both factors. The two factors are a sliding scale— the stronger the showing of probability of prevailing, the lesser showing is required for irreparable harm. (Id.; The Right Side Coalition v. Los Angeles Unified School District (2008) 160 Cal.App.4th 336 [reversing denial of preliminary injunction based solely on balancing of hardships without considering probability of prevailing].) The plaintiff must make some showing of each factor. (Jessen v. Keystone Savings & Loan Association (1983) 142 Cal.App.3d 454, 459.) A court may not issue a preliminary injunction if the plaintiff cannot possibly prevail on the merits even if a strong showing of irreparable harm has been made. (Butt, 4 Cal.4th at pgs. 677-678.)

On the first factor, a preliminary injunction may not issue unless the judge is persuaded that it is “reasonably probable” that the plaintiff will prevail on the merits. (San Francisco Newspaper Printing Co. v. Superior Court (1985) 170 Cal.App.3d 438, 442.) The judge does not determine the merits of the action or decide that the plaintiff necessarily will prevail. The judge only determines whether there is a reasonable probability that the plaintiff will prevail. (Youngblood v. Wilcox (1989) 207 Cal.App.3d 1368, 1372.)

For the second factor, “irreparable harm” means that the defendant’s act constitutes an actual or threatened injury to the personal or property rights of the plaintiff

that cannot be compensated by a damages award.

(Brownfield v. Daniel Freeman

Marina Hospital (1989) 208 Cal.App.3d 405, 410.) A plaintiff is not required to wait until suffering actual harm; threatened harm is enough. (Southern

Christian Leadership Conference v. Al Malaikah Auditorium Co. (1991) 230 Cal.App.3d 207, 223.)

The issue of irreparable harm is closely

related to the issue of damages as an adequate remedy at law. Monetary loss will not constitute irreparable harm unless the plaintiff also shows that the defendant is insolvent or unable to pay damages. (Friedman v Friedman (1993) 20 Cal.App.4th 876, 890.) While both residential and commercial real property are considered unique for purposes of irreparable harm (see Civ. Code §3387), damages may adequately compensate property owned for investment property which has an established value, and the foreclosing entity is solvent. (Jessen,

142 Cal.App.3d at pg. 458.) Where

the owner intends to use the investment property and not simply sell it, money damages may not suffice, and irreparable harm may justify injunctive relief. (Id.)

The showing must demonstrate the specific harm

claimed; mere allegations of irreparable injury are insufficient. (Leach v. City of San Marcos (1989) 213 Cal.App.3d 648, 661 [“A mere allegation that such injury will result is not sufficient”.]) Conclusory statements, lay opinion, and attorney declarations will not suffice.

The irreparable harm must be imminent; a mere possibility or fear of harm is insufficient. (Korean Philadelphia Presbyterian Church v.

California Presbytery (2000) 77 Cal.App.4th 1069, 1084.) The court’s ruling on a preliminary injunction is not an adjudication of the merits, is not a trial, and does not require a statement of decision. (Cohen v. Board of Supervisors, (1985) 40

Cal.3d 277, 286; People v. Landlords

Professional Services, Inc., (1986) 178 Cal.App.3d 68, 70-71.) The Court is not required to state its reasons for granting or denying a preliminary injunction; a cursory statement is sufficient. (City of Los Altos v. Barnes (1992) 3 Cal.App.4th 1193, 1198.)

Discussion

Plaintiff

fails to demonstrate she has a reasonable likelihood of success on her claims. Plaintiff’s Complaint fails to state any facts to support any cognizable cause of action. Plaintiff’s Complaint is composed of filler paragraphs, such as “Plaintiff alleges fact paragraph 1, detailing minority,

fiduciary failure, coercion, concealment, incarceration, and delayed discovery.” (Complaint ¶1.) The declaration of Estate Administrator

(Mother) attached to the Complaint is also filled with placeholder declarations, such as “I declare under penalty of perjury that paragraph 1 describes coercion, threats, mental health incapacity, and inability to enforce the judgment,” and is signed by an unidentified individual on April 11, 2026. Because there is not reasonable probability of Plaintiff’s claim prevailing on the merits, the Court does not need to proceed to the second step of the analysis for balancing of harm.

Accordingly,
Plaintiff’s motion for preliminary injunction is denied.

Conclusion

Plaintiff’s unopposed motion for a preliminary injunction is denied.

Moving Party to give notice.

Dated:
July _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court